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QUESTION 3: Law Proposed by Initiative Petition

State Primary Elections

Do you approve of a law summarized below, on which no vote was taken by the Senate or the House of Representatives before May 6, 2026?

SUMMARY ▶
As required by law, summaries are written by the State Attorney General.

This proposed law would eliminate political party primaries for state elections and instead establish a system where there would be a single, all-party primary in which all candidates, regardless of their party affiliation, would be listed on one ballot, and voters could vote for any candidate on the ballot. The two candidates receiving the most votes in the primary would advance to the general election ballot.

This proposed law would require candidates for governor and lieutenant governor to run and be listed jointly on the ballot in the primary.

This proposed law would provide political party status to any group whose candidates for any statewide office received at least 3% of the ballots cast in the state primary.

WHAT YOUR VOTE WILL DO ▶
As required by law, the statements describing the effect of a "yes" or "no" vote are written jointly by the State Attorney General and the Secretary of the Commonwealth.

A YES VOTE would eliminate separate party primaries for state elections and require a single primary in which all candidates appear on one ballot, voters could vote for any candidate, and the top two candidates would advance to the general election.

A NO VOTE would make no change to the laws governing primary elections.

STATEMENT OF FISCAL CONSEQUENCES ▶
As required by law, statements of fiscal consequences are written by the Executive Office of Administration and Finance.

The proposed law has no discernible material fiscal consequences for state and municipal government finances

ARGUMENTS ▶
As provided by law, the 150-word arguments are written by proponents and opponents of each question, and reflect their opinions. **The Commonwealth of Massachusetts does not endorse these arguments, and does not certify the truth or accuracy of any statement made in these arguments**. The names of the individuals and organizations who wrote each argument, and any written comments by others about each argument, are on file in the Office of the Secretary of the Commonwealth.

IN FAVOR:

Massachusetts elected officials should work for us, not insiders. But for years insiders have held the advantage. Many elections are over before most of us ever cast a ballot. Candidates can be blocked at party conventions. Today, two-thirds of the legislature is running unopposed. They can take voters for granted and ignore important issues like affordable housing, energy costs, better schools, and the audit 72% of us demanded.

All-Party Primaries will bring accountability and transparency to Massachusetts politics by making elections more competitive, forcing politicians to listen. All candidates appear on your primary ballot, and the top two advance to November where they need a majority of votes to win. Insiders have less control and we get fresh voices running for office.

More competition means more accountability. Legislators who know voters can replace them listen to us and deliver real results.

Vote Yes on Question 3 for accountability and competition.

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ARGUMENTS ▶ (continued) ***AGAINST:***

VOTE NO ON QUESTION 3

Similar top-two systems in California and Washington have favored wealthy, self-funded candidates who can out-advertise crowded fields and the corporate PACs seeking to purchase offices, while sidelining grassroots candidates and historically marginalized and underrepresented groups such as candidates of color and women. Third-party and independent candidates would be shut out of the general election, and working-class candidates would lose out on institutional support and access to party resources.

This proposal would limit voter choice by allowing only two candidates to advance to November — even if they belong to the same party — reducing competition, lowering voter participation, worsening inequities, and narrowing debate.

Massachusetts voters deserve real choices, not a system that rewards money and name recognition over community support. Vote No.

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QUESTION 2: Majority Report (continued)

only to the narrow criteria listed in Article 48. Thus, this Petition has been certified by the Attorney General under Article 48, but it has not been evaluated by her or the courts for its constitutionality at this time.

For these reasons, a majority of the Committee recommends that the General Court **take no action** on Initiative Petition 25-22, House 5009, *Initiative Petition for a Law Relative to Labor Relations Policies for Committee for Public Counsel Services Employees*.

Senators.	**Representatives.**
Cindy F. Friedman	Alice Hanlon Peisch
Brendan P. Crighton	Kate Hogan
Barry R. Finegold	Frank A. Moran
	Michael S. Day
	David T. Vieira

QUESTION 3: Majority Report

A majority of the Special Joint Committee on Initiative Petitions

Article 48 of the Amendments to the Constitution of the Commonwealth allows voters to propose laws or constitutional amendments through initiative petitions, commonly called ballot questions. After gathering the required signatures and submitting certified signatures to the Secretary of the Commonwealth, a petition is formally presented to the Legislature for consideration. It is then referred to a committee, in this case, the Special Joint Committee on Initiative Petitions.

Under Article 48, the committee must report to the Legislature on each petition before the first Wednesday in May. Unlike the standard legislative process, the Legislature may only approve or reject an initiative petition as submitted, without making changes.

The Committee held a hearing on Initiative Petition 25-12, House 5003, *Initiative Petition for a Law to Implement to All-Party State Primaries*, on March 31, 2026. The Special Joint Committee on Initiative Petitions held public hearings throughout March 2026 to gather testimony and inform its review. The Committee considered input from subject matter experts, proponents and opponents of the Petition, as well as members of the public. The full hearing record and supporting documentation is available to the public at malegislature.gov/Events/Hearings/Detail/5632.

On May 4, 2026, a majority of the Special Joint Committee on Initiative Petitions ("the Committee") voted to recommend that the General Court **take no action** on Initiative Petition 25-12, House No. 5003, *Initiative Petition for a Law to Implement to All-Party State Primaries* ("the Petition").

In reaching this determination, the Committee conducted a comprehensive review of the proposed measure, including a detailed analysis of its language, structure, and intended effect. The Committee evaluated testimony and supporting evidence presented during the public hearing, as well as additional written submissions from election officials, policy experts, advocacy organizations, and members of the public. This testimony raised administrative and fiscal implications of implementing the proposal at both the state and municipal levels, as well as concerns that all-party primaries may result in vote splitting, reduced party accountability, voter confusion, and strategic voting, often disadvantaging less-funded candidates and producing unpredictable or unrepresentative outcomes.

The Petition would reform the Commonwealth's method for selecting candidates for a general election by removing partisan primaries and instead transitioning to an "all-party" state primary. Under this proposed system, which is also called a "top-two" primary in other jurisdictions that implement a similar structure, candidates for elected office run in a primary election against all of the other candidates for that office, and the candidates who receive the first and second highest number of votes in the primary election are the only candidates to advance to the general election.

The system of a partisan primary election administered by the Commonwealth was implemented in 1911, establishing direct voter nomination of candidates for state offices. This law changed the practice at the time, when each party controlled the method of nominating candidates to represent their party in the general election. The proposed Petition would remove the ability for voters to choose their candidate of choice to represent their preferred party in a general election and would instead ask voters in a primary election to vote for one candidate for that office among all candidates regardless of party affiliation.

The Petition proposes a new system to address the loss of a partisan primary election, whereby candidates for office would be allowed to display their party affiliation on both the primary and general election ballot based on their voter

QUESTION 3: Majority Report (continued)

registration, as well as a newly created endorsement by a party or a political designation that also can be listed on the ballot.

The proponents testified that this new endorsement would afford political parties and political designations the ability to have a demonstrative say in the preferred candidates of their party. However, it is important to note that this method does not currently exist for either of the two largest parties by registration in the Commonwealth, the Democratic and Republican parties. Currently, these parties use a convention to formally endorse candidates in statewide elected office, but the party's endorsement does not currently appear as a notation on the ballot in a partisan primary election. As there is no current method or infrastructure for either of the two largest parties to endorse candidates below statewide office, this Petition leaves an open question as to how that would operate and how the endorsement of a party could be secured, as well as the possibility that parties could use an unfair or private process to determine a method for endorsement that could have a major impact on an election, which would be contrary to the 1911 primary election reforms and the stated goals of the proponents.

The proponents posture that this Petition would increase voter participation and increase the number of elected officials from third parties or who are independent from a party. The available evidence does not indicate either of these claims to be accurate. In a study of the impacts of California switching to a "top-two" primary system, evidence shows that turnout in the primary election increased, but conversely, participation in the general election decreased, when comparing both to the previous partisan primary process. In other words, this process had the additional negative effect of decreasing voter participation in general elections in California. Further, a review of the makeup of California and Washington's state legislatures demonstrate that there are zero members of a third party or who are independent of a party serving as active members, which is less than the current makeup of the Legislature in Massachusetts, which does not use a "top-two" primary system. The proponents stated that Alaska has legislators who are independent of a party, but Alaska uses a "top-four" primary system that is coupled with ranked choice voting for the general election, a total system that combined is vastly different from what the Petition proposes. As written, the implementation of this Petition can lead to general elections where two candidates from just one major party are the only candidates for a voter to choose from, such as two Republican candidates or two Democratic candidates. This has occurred in California, and has been stated as a contributing factor towards the decrease in turnout in general elections.

It is important to note that Article 48 of the Amendments to the Massachusetts Constitution, which governs the initiative petition process, requires the Attorney General to provide initial certification of initiative petitions that meet the specific and limited requirements listed in Article 48. In making a decision on whether to initially certify an initiative petition, the Attorney General does not evaluate a petition's broader constitutionality; her certification decision is limited only to the narrow criteria listed in Article 48. Thus, this Petition has been certified by the Attorney General under Article 48, but it has not been evaluated by her or the courts for its constitutionality at this time.

For these reasons, a majority of the Committee recommends that the General Court **take no action** on Initiative Petition 25-12, House 5003, *Initiative Petition for a Law to Implement to All-Party State Primaries*.

Senators.	**Representatives.**
Cindy F. Friedman	Alice Hanlon Peisch
Brendan P. Crighton	Kate Hogan
Paul R. Feeney	Frank A. Moran
	Michael S. Day
	David T. Vieira

Full Texts

QUESTION 1: Full Text of Proposed Law

An Act to improve access to public records.

Be it enacted by the People, and by their authority;

SECTION 1. The first paragraph of Clause Twenty-Sixth of Section 7 of Chapter 4 of the General Laws is hereby amended by inserting after the words “chapter 32” the following phrase “or by the general court, or by the office of the governor of the commonwealth,”.

SECTION 2. Said Clause Twenty-Sixth of Section 7 of Chapter 4 of the General Laws is hereby further amended by inserting the following new subparagraphs following subparagraph (v):-

(w) communications between a member of the general court, or such member’s employee, agent, or representative, and any constituent of such member; provided, however, that the communications reasonably relate to a constituent’s request for assistance in obtaining government-provided benefits or services or otherwise interacting with a state or federal agency.

(x) communications, memoranda, drafts or other documents relating to developing policy positions of members of the general court or the governor of the commonwealth.

SECTION 3. The third sentence of the first paragraph of Section 6A of Chapter 66 of the General Laws is hereby amended by striking said third sentence and inserting in place thereof the following:-

For the purposes of this chapter the term “agency” shall mean any entity, other than a municipality, that is identified in clause twenty-sixth of section 7 of chapter 4 as possessing “public records,” as defined therein, including the general court and the office of the governor of the commonwealth.

SECTION 4. Section 18 of Chapter 66 of the General Laws is hereby amended by striking said Section 18 and inserting in place thereof the following:-

Section 18. Declarations, affidavits and other papers filed by claimants in the office of the secretary of veterans’ services or records kept by the secretary for reference by the officials of their office, shall not be considered public records for the purposes of this chapter.

SECTION 5. This act shall take effect on January 1, 2027.

QUESTION 2: Full Text of Proposed Law

An Act relative to labor relations policies for committee for public counsel services employees.

Be it enacted by the People, and by their authority;

SECTION 1: Section 1 of chapter 150E of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding to the end of the seventh paragraph, titled “Employer” or “public employer”, the following sentence: “In the case of employees of the committee for public counsel services, employer shall mean the committee for public counsel services or its designee.”

SECTION 2. Section 7 of said chapter 150E of the General Laws, as so appearing, is hereby amended by striking the word “or” before the phrase “the state lottery commission” in line 16 and adding the following words after that phrase: “or the committee for public counsel services.”

SECTION 3. Said section 7 of said chapter 150E of the General Laws, as so appearing, is hereby amended by striking the word “and” before the words “the state lottery commission” appearing in line 34 and inserting after the word “commission” in line 35 the following words: “and committee for public counsel services.”

QUESTION 3: Full Text of Proposed Law

An Act to implement all-party state primaries.

Be it enacted by the People, and by their authority;

SECTION 1. Section 1 of Chapter 50 of the General Laws is hereby amended by amending the definition of “Political party” therein by inserting after the phrase “to a party which at” in the first sentence thereof the phrase “the latest state primary held prior to”, and by striking the second sentence thereof in its entirety.

SECTION 2. Chapter 50 of the General laws is hereby amended by inserting after Section 2 the following Section 2A:-

Section 2A. In state primaries held in accordance with sections forty-one to fifty-three A, inclusive, of chapter fifty-three, the two persons receiving the highest number of votes for an office shall be deemed nominated for election to such office and shall be the only persons whose names shall be printed on the ballot for such office at the next proceeding state election.

QUESTION 3: Full Text of Proposed Law (continued)

SECTION 3. Section 2 of Chapter 53 of the General Laws is hereby amended by inserting the phrase “Except as provided in section two-A of chapter fifty,” at the beginning of the second sentence thereof.

SECTION 4. Section 6 of Chapter 53 of the General Laws is hereby amended by striking from said Section 6 the first two sentences of the first paragraph thereof, and the second and third paragraphs thereof in their entirety.

SECTION 5. Section 8 of Chapter 53 of the General Laws is hereby amended by striking from said Section 8 the first three sentences of the first paragraph thereof, and the first and fourth sentences of the second paragraph thereof.

SECTION 6. Section 10 of Chapter 53 of the General Laws is hereby amended by striking the first four sentences from the first paragraph of said Section 10 and inserting in place thereof the following:-

All certificates of nomination and nomination papers of candidates for offices for which state primaries are held in accordance with section forty-one, shall be filed in accordance with section forty-six.

SECTION 7. Section 14 of Chapter 53 of the General Laws is hereby amended by inserting after the word “otherwise” in the first sentence thereof the following:- shall first be filled by the candidate who received the next highest number of votes for such office in the applicable state primary, and if there is no such candidate,

SECTION 8. Section 33 of Chapter 53 of the General Laws is hereby amended by striking said Section 33 and inserting in place thereof the following:-

Section 33. At least three facsimile copies of the ballot shall be provided for each polling place as specimen ballots.

SECTION 9. Section 34 of Chapter 53 of the General Laws is hereby amended by striking from the first sentence thereof the phrase “Official ballot of the (here shall follow the party name)” and inserting in place thereof the phrase “Official primary ballot”, and by inserting following the first paragraph thereof the following:-

Against the name of each such candidate there shall be printed the political party or designation reflected on their nomination papers, as provided in section forty-five and, upon the joint request of the general or executive committee representing a political party or designation and such candidate, the words “Endorsed by the [name of political party or designation]”. In the latter case, the request must be filed with the state secretary not less than fifteen days prior to the latest date by which ballots must be printed.

SECTION 10. Section 37 of Chapter 53 of the General Laws is hereby amended by striking from the first paragraph thereof the first sentence in its entirety, the phrases “Except as provided by section thirty-seven A,” and “, and, if the party enrolment of such voter is shown on the voting list, the name of the party in which he is enrolled” from the second sentence thereof, the third sentence in its entirety, the phrase “of the political party so requested” from the fourth sentence thereof, and the fifth sentence in its entirety, and from the second paragraph thereof the second and third sentences in their entirety.

SECTION 11. Section 41 of Chapter 53 of the General Laws is hereby amended by striking the phrase “of political parties” from the first sentence thereof.

SECTION 12. Section 44 of Chapter 53 of the General Laws is hereby amended by striking the last sentence thereof and inserting in place thereof the following:-

In the case of the offices of governor and lieutenant governor, only nomination papers containing the names and addresses of candidates for both offices shall be valid.

SECTION 13. Section 45 of Chapter 53 of the General Laws is hereby amended by striking the phrase “the political party whose nomination he seeks” in the first sentence thereof, and inserting in place thereof the phrase “the political party or designation that he represents, if any, as determined by his voter registration”, and by striking the fourth paragraph thereof and inserting in place thereof the following:-

No nomination paper for use in the nomination of candidates to be voted for at state primaries shall contain the name of more than one candidate, except that nomination papers for candidates for governor and lieutenant governor shall contain the name of one candidate for each office. Such nomination papers for candidates for governor and lieutenant governor shall contain provision for the names and addresses of members of a committee of five registered voters who shall fill any vacancy caused by death, withdrawal, ineligibility or disqualification of either candidate.

SECTION 14. Section 46 of Chapter 53 of the General Laws is hereby amended by striking the phrase “and who are not enrolled in any other party than that whose nomination the candidate seeks,” from the fifth sentence thereof.

SECTION 15. Section 53 of Chapter 53 of the General Laws is hereby amended by striking said Section 53 and inserting in place thereof the following:-

Section 53. In case of a tie vote where the number of persons receiving equal votes exceeds the number of nominations available, the state secretary shall forthwith

QUESTION 3: Full Text of Proposed Law (continued)

summon the candidates who have received the tie votes to appear before them at a time and place to be designated by them. The state secretary shall at that time and place break the tie by lot.

SECTION 16. Section 33 of Chapter 54 of the General Laws is hereby amended by striking the phrase “and elections and of voting for candidates of more than one political party at a primary” from the first paragraph thereof, striking the final sentence of the second paragraph thereof, and striking the phrase “or of voting for candidates of more than one political party at a primary” from the third paragraph thereof,

SECTION 17. Section 43A of Chapter 54 of the General Laws is hereby amended by striking the phrase “at a state election” from the first sentence thereof.

SECTION 18. This act shall take effect on January 1, 2028.

SECTION 19. The provisions of this act are severable, and if any clause, sentence, paragraph or section of this law or an application thereof shall be adjudged by any court of competent jurisdiction to be invalid, such judgment shall not affect, impair, or invalidate the remainder thereof but shall be confined in its operation the clause, sentence, paragraph, section or application adjudged invalid and such clause, sentence, paragraph, section or application shall be reformed and construed so that it would be valid to the maximum extent permitted.

QUESTION 4: Full Text of Proposed Law

An Act relative to election day registration.

Be it enacted by the People, and by their authority;

SECTION 1. Section 1 of chapter 51 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out the last sentence and inserting in place thereof the following sentence:- A person otherwise qualified to vote for national or state officers, but who has not registered in accordance with the provisions of section 26 of this chapter shall be eligible to register under section 34A.

SECTION 2. Section 1F of chapter 51 of the General Laws is hereby repealed.

SECTION 3. Said chapter 51, as so appearing, is hereby amended, by striking out section 3, as so appearing, and inserting in place thereof the following section:

Section 3. For all elections and primaries, a person shall be registered and may vote in the voting precinct where they reside; provided, however, that any registered voter of a city or town who moves to any other precinct in said city or town or to another city or town may register to vote at their new address by making written application to the city or town clerk no later than the close of registration or in accordance with the provisions of section 34A of this chapter. A new resident of the city or town may also, upon like application, be registered at the new address by making written application to the city or town clerk no later than the close of registration or in accordance with the provisions of section 34A. The city or town clerk shall forthwith notify each voter making any such written application that the same has been received and that they may vote, subject to the provision of this section regarding the close of registration, in the precinct into which they have moved or in accordance with provisions of section 34A.

SECTION 4. Section 26 of said chapter 51, as so appearing, is hereby amended by striking the last sentence.

SECTION 5. Said chapter 51 is hereby further amended by striking out section 34, as appearing in the 2022 Official Edition, and inserting in place thereof the following section:—

Section 34. Except as otherwise provided in section 34A, after 5:00 p.m. of a day on which registration is to cease, the registrars shall not register any person to vote in the next election, except that they shall furnish, or cause to be furnished, to each person waiting in line at the hour of 5:00 pm for the purpose of being registered, a card or slip of identification bearing such person’s name and shall, before registration ceases, permit such person to register.

SECTION 6. Said chapter 51 is hereby further amended by inserting after section 34 the following section: —

Section 34A. (a) An individual who is eligible to vote may register on the day of an election by appearing in person at the appropriate polling place for the precinct in which they reside, during the hours in which polls are open for voting, by completing a registration application in a form prescribed by the state secretary, by presenting to the appropriate election official proof of residency and by making a written oath which shall be as follows: I certify that I: am a citizen of the United States; am at least 18 years old; am not under guardianship that prohibits me from registering and/or voting or otherwise prohibited from